

OFFICE OF THE SECRETARY

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August 19, 2021

The Honorable Timothy M. Casserly
Judge of the Superior Court
County of San Diego
325 S. Melrose Drive
Vista, CA 92081

Re: Rodney Lee Riggins
CDCR No: K93543
Case No: SCN260586
Date of Sentence: August 17, 2010

Dear Honorable Timothy M. Casserly:

The purpose of this letter is to provide the court with the authority to resentence inmate Rodney L. Riggins, K93543 pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, Subdivision (d)(1) provides that upon, recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Riggins has remained disciplinary free since being received to CDCR on August 23, 2010. Inmate Riggins is currently assigned as Porter and also participates in Narcotics Anonymous. Inmate Riggins has received numerous certificates from group sponsors acknowledging his commitment and dedication to these self-awareness and improvement groups.

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Having reviewed the enclosed documentation it appears that inmate Riggin's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,

A handwritten signature in blue ink that reads "K. Allison". The signature is fluid and cursive, with the first name "K." and the last name "Allison" clearly visible.

KATHLEEN ALLISON
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Honorable Lorna A. Alksne, Presiding Judge
San Diego County District Attorney's Office
San Diego County Public Defender's Office